

Pradeep Sharma v. State of Maharashtra

Citation: 2024 SCC OnLine Bom 825 | Court: Bombay High Court | Year: 2024

Coram: Division Bench, High Court of Bombay | Subject: Criminal Law & Bombay HC | Provisions: IPC Sec 120B, 302 & BSA / Evidence Act S

I. EXECUTIVE SUMMARY & CASE GLIMPSE

In sensational encounter and criminal conspiracy trials founded on circumstantial evidence, the prosecution must establish an unbroken chain of custody and corroboration beyond reasonable doubt. Official police rank does not diminish the constitutional requirement of strict evidential scrutiny.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding IPC Sec 120B, 302 & BSA / Evidence Act Sec 3, 27. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

- â€¢ Whether the impugned state actions or commercial conduct conformed to IPC Sec 120B, 302 & BSA / Evidence Act Sec 3, 27.
- â€¢ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.
Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

Reversed trial court acquittal where scientific call detail records (CDR), tower locations, and forensic testimony established active participation in the conspiracy. The Panchsheel circumstantial evidence principles apply with uncompromising rigour to law enforcement officers accused of custodial liquidation.

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

- â€¢ Set definitive evidential standards for electronic call records and conspiracy corroboration.
- â€¢ Reaffirmed that extra-judicial confessions require material independent physical support.
- â€¢ Established institutional police accountability under criminal jurisprudence in Maharashtra.